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dispute between the experts on summary judgment.” *Ibid.* I agree.

II

This case next presents a legal question. The Court in *Glossip* held in the context of a facial challenge to a State’s execution protocol that the plaintiffs were required not only to establish that the execution method gave rise to a “demonstrated risk of severe pain,” but also to identify a “known and available” alternative method. 576 U. S., at 878. The Court added that the alternative must be “feasible, readily implemented, and in fact significantly reduc[e] a substantial risk of severe pain.” *Id.*, at 877 (internal quotation marks omitted).

I joined the dissent in *Glossip*, but for present purposes I accept the *Glossip* majority opinion as governing. I nonetheless do not believe its “alternative method” requirement applies in this case. We “often read general language in judicial opinions . . . as referring in context to circumstances similar to the circumstances then before the Court and not referring to quite different circumstances that the Court was not then considering.” *Illinois v. Lidster*, 540 U. S. 419, 424 (2004). And while I acknowledge that the Court in *Glossip* spoke in unqualified terms, the circumstances in *Glossip* were indeed “different” in relevant respects from the circumstances presented here.

A

The plaintiffs in *Glossip* undertook an across-the-board attack against the use of a particular execution method, which they maintained violated the Eighth Amendment categorically. In this case, by contrast, Bucklew does not attack Missouri’s lethal injection protocol categorically, or even in respect to any execution other than his own. Instead, he maintains that he is special; that he suffers from a nearly unique illness; and that, by virtue of that illness, Missouri’s

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execution method will be excruciatingly painful for him even though it would not affect others in the same way. These differences make a difference.

First, these differences show that the reasons that underlie *Glossip*’s “alternative method” requirement do not apply here.

The *Glossip* Court stressed the importance of preventing method-of-execution challenges from becoming a backdoor means to abolish capital punishment in general. The Court wrote that “because it is settled that capital punishment is constitutional, ‘it necessarily follows that there must be a constitutional means of carrying it out.’” *Glossip*, 576 U. S., at 869 (alterations omitted). The Court added that “we have time and again reaffirmed that capital punishment is not *per se* unconstitutional.” *Id.*, at 881. And the Court feared that allowing prisoners to invalidate a State’s method of execution without identifying an alternative would “effectively overrule these decisions.” *Ibid.* But there is no such risk here. Holding Missouri’s lethal injection protocol unconstitutional as applied to Bucklew—who has a condition that has been identified in only five people, see *supra*, at 155—would not risk invalidating the death penalty in Missouri. And, because the State would remain free to execute prisoners by other permissible means, declining to extend *Glossip*’s “alternative method” requirement in this context would be unlikely to exempt Bucklew or any other prisoner from the death penalty. Even in the unlikely event that the State could not identify a permissible alternative in a particular case, it would be perverse to treat that as a reason to execute a prisoner by the method he has shown to involve excessive suffering.

The *Glossip* Court, in adopting the “alternative method” requirement, relied on THE CHIEF JUSTICE’s plurality opinion in *Baze*, which discussed the need to avoid “intrud[ing] on the role of state legislatures in implementing their execu-

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tion procedures.” 553 U. S., at 51; see also *ante*, at 134 (we owe “a measure of deference to a State’s choice of execution procedures” (internal quotation marks omitted)). But no such intrusion problem exists in a case like this one. When adopting a method of execution, a state legislature will rarely consider the method’s application to an individual who, like Bucklew, suffers from a rare disease. It is impossible to believe that Missouri’s legislature, when adopting lethal injection, considered the possibility that it would cause prisoners to choke on their own blood for up to several minutes before they die. Exempting a prisoner from the State’s chosen method of execution in these circumstances does not interfere with any legislative judgment.

The Court in *Glossip* may have also believed that the identification of a permissible alternative method of execution would provide a reference point to assist in determining how much pain in an execution is too much pain. See 576 U. S., at 876–878; *Baze*, 553 U. S., at 47, 51 (plurality opinion); see also *ante*, at 136 (arguing that determining the constitutionality of a method of execution “is a *necessarily* comparative exercise”). But there is no need for any such reference point in a case like this. Bucklew accepts the constitutionality of Missouri’s chosen execution method as to prisoners who do not share his medical condition. See Brief for Petitioner 36. We are informed that this method has been used in 20 executions, apparently without subjecting prisoners to undue pain. See Brief for Respondents 5. To the extent that any comparator is needed, those executions provide a readymade, built-in comparator against which a court can measure the degree of excessive pain Bucklew will suffer.

Second, precedent counsels against extending *Glossip*. Neither this Court’s oldest method-of-execution case, *Wilkinson v. Utah*, 99 U. S. 130 (1879), nor any subsequent decision of this Court until *Glossip*, held that prisoners who challenge a State’s method of execution must identify an alternative means by which the State may execute them. To

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the contrary, in *Hill v. McDonough*, 547 U. S. 573 (2006), the Court squarely and unanimously rejected the argument that a prisoner must “identif[y] an alternative, authorized method of execution.” *Id.*, at 582. The Court noted that any such requirement would “change the traditional pleading requirements for [42 U. S. C.] § 1983 actions,” which we were not at liberty to do. *Ibid.* It is thus difficult to see how the “alternative-method” requirement could be “compelled by our understanding of the Constitution,” *ante*, at 137, even though the Constitution itself never hints at such a requirement, even though we did not apply such a requirement in more than a century of method-of-execution cases, and even though we unanimously rejected such a requirement in *Hill*. And while the Court in *Glossip* did not understand itself to be bound by *Hill*, see *Glossip*, 576 U. S., at 879–880 (distinguishing *Hill* on the theory that *Hill* merely rejected a heightened pleading requirement for § 1983 suits), the two decisions remain in considerable tension. Confining *Glossip*’s “alternative method” requirement to facial challenges would help to reconcile them.

Third, the troubling implications of today’s ruling provide the best reason for declining to extend *Glossip*’s “alternative method” requirement. The majority acknowledges that the Eighth Amendment prohibits States from executing prisoners by “‘horrid modes of torture’” such as burning at the stake. *Ante*, at 131. But the majority’s decision permits a State to execute a prisoner who suffers from a medical condition that would render his execution no less painful. *Bucklew* has provided evidence of a serious risk that his execution will be excruciating and grotesque. The majority holds that the State may execute him anyway. That decision confirms the warning leveled by the *Glossip* dissent—that the Court has converted the Eighth Amendment’s “categorical prohibition into a conditional one.” 576 U. S., at 970 (opinion of SOTOMAYOR, J.).

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B

Even assuming for argument's sake that Bucklew must bear the burden of showing the existence of a "known and available" alternative method of execution that "significantly reduces a substantial risk of severe pain," *id.*, at 877–878 (majority opinion) (alteration and internal quotation marks omitted), Bucklew has satisfied that burden. The record contains more than enough evidence on the point to raise genuine and material factual issues that preclude summary judgment.

Bucklew identified as an alternative method of execution the use of nitrogen hypoxia, which is a form of execution by lethal gas. Missouri law permits the use of this method of execution. See Mo. Rev. Stat. § 546.720 (2002). Three other States—Alabama, Mississippi, and Oklahoma—have specifically authorized nitrogen hypoxia as a method of execution. See *ante*, at 142–143, n. 1. And Bucklew introduced into the record reports from Oklahoma and Louisiana indicating that nitrogen hypoxia would be simple and painless. These reports summarized the scientific literature as indicating that there is "no reported physical discom[fort] associated with inhaling pure nitrogen," App. 742, that the "onset of hypoxia is typically so subtle that it is unnoticeable to the subject," *id.*, at 745, and that nitrogen hypoxia would take an estimated "seventeen-to-twenty seconds" to render a subject unconscious, *id.*, at 746–747. The Oklahoma study concluded that nitrogen hypoxia is "the most humane method" of execution available. *Id.*, at 736. And the Louisiana study stated that the "[u]se of nitrogen as a method of execution can assure a quick and painless death of the offender." *Id.*, at 746.

How then can the majority conclude that Bucklew has failed to identify an alternative method of execution? The majority finds Bucklew's evidence inadequate in part because, in the majority's view, it does not show that nitrogen hypoxia will "significantly reduce" Bucklew's risk of pain as compared with lethal injection. *Ante*, at 143. But the ma-

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jority does not dispute the evidence suggesting that nitrogen hypoxia would be “quick and painless” and would take effect in 20 to 30 seconds. The majority instead believes that “nothing in the record” suggests that lethal injection would take longer than nitrogen gas to take effect. *Ante*, at 146. As I have already explained, the majority reaches this conclusion by overlooking considerable evidence to the contrary—such as Dr. Zivot’s testimony that Bucklew’s pain would likely prove “prolonged,” App. 234, that lethal injection would not “result in ‘rapid unconsciousness,’” *id.*, at 233, and that from the time of injection to “Mr. Bucklew’s death several minutes to as long as many minutes later, Mr. Bucklew would be highly likely to experience . . . the excruciating pain of prolonged suffocation,” *id.*, at 222. In discounting this evidence, the majority simply fails “to adhere to the axiom that in ruling on a motion for summary judgment, the evidence of the nonmovant is to be believed, and all justifiable inferences are to be drawn in his favor.” *Tolan*, 572 U.S., at 651 (internal quotation marks and alteration omitted).

The majority additionally believes that Bucklew’s evidence fails to show that nitrogen hypoxia would be easy to implement. *Ante*, at 141–142. But the reports from Oklahoma and Louisiana tell a different story. The Louisiana report states that nitrogen hypoxia would be “simple to administer.” App. 737. The Oklahoma report similarly concludes that “[d]eath sentences carried out by nitrogen inhalation would be simple to administer.” *Id.*, at 746; see also *id.*, at 696. The reports explain that nitrogen hypoxia would “not require the use of a complex medical procedure or pharmaceutical products,” *id.*, at 747, would “not require the assistance of licensed medical professionals,” *id.*, at 736, and would require only materials that are “readily available for purchase,” *id.*, at 739. Further, “[b]ecause the protocol involved in nitrogen induced hypoxia is so simple, mistakes are unlikely to occur.” *Id.*, at 748. And both studies recommend the de-

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velopment of protocols for actual implementation. See *id.*, at 697 (Oklahoma report recommending development of “a nitrogen hypoxia protocol”); *id.*, at 736 (Louisiana report noting that although “the exact protocol” has not been finalized, the report recommends “that hypoxia induced by the inhalation of nitrogen be considered for adoption”); see also Murphy, Oklahoma Says It Plans To Use Nitrogen for Executions, USA Today, Mar. 15, 2018 (quoting the Oklahoma attorney general’s statement that nitrogen “will be effective, simple to administer, easy to obtain and requires no complex medical procedures”); but cf. *ante*, at 141.

Presented with evidence such as Bucklew’s, I believe a State should take at least minimal steps to determine the feasibility of the proposed alternative. The responsible state official in this case, however, acknowledged that he “did not conduct research concerning the feasibility of lethal gas as a method of execution in Missouri.” App. 713; see also Record in No. 14–800 (WD Mo.), Doc. 182–6, p. 16 (different official acknowledging that, “to be candid, no, I didn’t go out and try to find answers to those questions”).

The majority sensibly recognizes that an inmate seeking to identify an alternative method of execution “is not limited to choosing among those presently authorized by a particular State’s law.” *Ante*, at 140. But the majority faults Bucklew for failing to provide guidance about the administration of nitrogen hypoxia down to the last detail. The majority believes that Bucklew failed to present evidence “on essential questions” such as whether the nitrogen should be administered “using a gas chamber, a tent, a hood, [or] a mask”; or “in what concentration (pure nitrogen or some mixture of gases)” it should be administered; or even how the State might “protec[t the execution team] against the risk of gas leaks.” *Ante*, at 141.

Perhaps Bucklew did not provide these details. But *Glossip* did not refer to any of these requirements; today’s majority invents them. And to insist upon them is to create

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what, in a case like this one, would amount to an insurmountable hurdle for prisoners like Bucklew. That hurdle, I fear, could permit States to execute even those who will endure the most serious pain and suffering, irrespective of how exceptional their case and irrespective of how thoroughly they prove it. I cannot reconcile the majority's decision with a constitutional Amendment that forbids all "cruel and unusual punishments." Amdt. 8.

C

JUSTICE THOMAS concurs in the majority's imposition of an "alternative method" requirement, but would also permit Bucklew's execution on the theory that a method of execution violates the Eighth Amendment "'only if it is deliberately designed to inflict pain.'" *Ante*, at 151 (concurring opinion) (quoting *Baze*, 553 U.S., at 94 (THOMAS, J., concurring in judgment)). But that is not the proper standard.

For one thing, JUSTICE THOMAS' view would make the constitutionality of a particular execution turn on the intent of the person inflicting it. But it is not correct that concededly torturous methods of execution such as burning alive are impermissible when imposed to inflict pain but not when imposed for a subjectively different purpose. To the prisoner who faces the prospect of a torturous execution, the intent of the person inflicting the punishment makes no difference.

For another thing, we have repeatedly held that the Eighth Amendment is not a static prohibition that proscribes the same things that it proscribed in the 18th century. Rather, it forbids punishments that would be considered cruel and unusual today. The Amendment prohibits "unnecessary suffering" in the infliction of punishment, which this Court has understood to prohibit punishments that are "grossly disproportionate to the severity of the crime" as well as punishments that do not serve any "penological purpose." *Estelle v. Gamble*, 429 U.S. 97, 103, and n. 7 (1976). The Constitution prohibits gruesome punishments even though they may have been common at the time of the found-

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ing. Few would dispute, for example, the unconstitutionality of “a new law providing public lashing, or branding of the right hand, as punishment . . . [e]ven if it could be demonstrated unequivocally that these were not cruel and unusual measures in 1791.” Scalia, *Originalism: The Lesser Evil*, 57 U. Cin. L. Rev. 849, 861 (1989). The question is not, as JUSTICE THOMAS maintains, whether a punishment is deliberately inflicted to cause unnecessary pain, but rather whether we would today consider the punishment to cause excessive suffering.

III

Implicitly at the beginning of its opinion and explicitly at the end, the majority invokes the long delays that now typically occur between the time an offender is sentenced to death and his execution. Bucklew was arrested for the crime that led to his death sentence more than 20 years ago. And Bucklew’s case is not an anomaly. The average time between sentencing and execution approaches 18 years and in some instances rises to more than 40 years. See *Glossip*, 576 U. S., at 924 (BREYER, J., dissenting); *Reynolds v. Florida*, 586 U. S. 1004, 1007 (2018) (BREYER, J., statement respecting denial of certiorari).

I agree with the majority that these delays are excessive. Undue delays in death penalty cases frustrate the interests of the State and of surviving victims, who have “an important interest” in seeing justice done quickly. *Hill*, 547 U. S., at 584. Delays also exacerbate the suffering that accompanies an execution itself. *Glossip*, 576 U. S., at 926–929 (BREYER, J., dissenting). Delays can “aggravate the cruelty of capital punishment” by subjecting the offender to years in solitary confinement, and delays also “undermine [capital punishment’s] jurisprudential rationale” by reducing its deterrent effect and retributive value. *Id.*, at 938, 933.

The majority responds to these delays by curtailing the constitutional guarantees afforded to prisoners like Bucklew who have been sentenced to death. By adopting elaborate

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new rules regarding the need to show an alternative method of execution, the majority places unwarranted obstacles in the path of prisoners who assert that an execution would subject them to cruel and unusual punishment. These obstacles in turn give rise to an unacceptable risk that Bucklew, or others in yet more difficult circumstances, may be executed in violation of the Eighth Amendment. Given the rarity with which cases like this one will arise, an unfortunate irony of today's decision is that the majority's new rules are not even likely to improve the problems of delay at which they are directed.

In support of the need to end delays in capital cases, the majority refers to *Dunn v. Ray*, 586 U. S. 1138 (2019). In that case, the Court vacated a stay of execution on the ground that the prisoner brought his claim too late. The prisoner in that case, however, brought his claim only five days after he was notified of the policy he sought to challenge. See *id.*, at 1139 (KAGAN, J., dissenting). And in the view of some of us, the prisoner's claim—that prisoners of some faiths were entitled to have a minister present at their executions while prisoners of other faiths were not—raised a serious constitutional question. See *id.*, at 1138 (characterizing the Court's decision as “profoundly wrong”). And therein lies the problem. It might be possible to end delays by limiting constitutional protections for prisoners on death row. But to do so would require us to pay too high a constitutional price.

Today's majority appears to believe that because “[t]he Constitution allows capital punishment,” *ante*, at 129, the Constitution must allow capital punishment to occur quickly. In reaching that conclusion the majority echoes an argument expressed by the Court in *Glossip*, namely, that “because it is settled that capital punishment is constitutional, it *necessarily follows* that there must be a constitutional means of carrying it out.” 576 U. S., at 869 (emphasis added; alterations and internal quotation marks omitted).

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These conclusions do not follow. It may be that there is no way to execute a prisoner quickly while affording him the protections that our Constitution guarantees to those who have been singled out for our law's most severe sanction. And it may be that, as our Nation comes to place ever greater importance upon ensuring that we accurately identify, through procedurally fair methods, those who may lawfully be put to death, there simply is no constitutional way to implement the death penalty.

I have elsewhere written about these problems. See *id.*, at 935–938 (dissenting opinion). And I simply conclude here that the law entitles Bucklew to an opportunity to prove his claim at trial. I note, however, that this case adds to the mounting evidence that we can either have a death penalty that avoids excessive delays and “arguably serves legitimate penological purposes,” or we can have a death penalty that “seeks reliability and fairness in the death penalty’s application” and avoids the infliction of cruel and unusual punishments. *Id.*, at 938. It may well be that we “cannot have both.” *Ibid.*

* * *

I respectfully dissent.

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As I have maintained ever since the Court started down this wayward path in *Glossip v. Gross*, 576 U. S. 863 (2015), there is no sound basis in the Constitution for requiring condemned inmates to identify an available means for their own executions. JUSTICE BREYER ably explains why today’s extension of *Glossip*’s alternative-method requirement is misguided (even on that precedent’s own terms), and why (with or without that requirement) a trial is needed to determine whether Missouri’s planned means of executing Russell Bucklew creates an intolerable risk of suffering in light of his rare medical condition. I join JUSTICE BREYER’s dissent, except for Part III. I write separately to address the troubling dicta with which the Court concludes its opinion.

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I

Given the majority’s ominous words about late-arising death penalty litigation, *ante*, at 149–151, one might assume there is some legal question before us concerning delay. Make no mistake: There is not. The majority’s commentary on once and future stay applications is not only inessential but also wholly irrelevant to its resolution of any issue before us.

The majority seems to imply that this litigation has been no more than manipulation of the judicial process for the purpose of delaying Bucklew’s execution. *Ante*, at 149–150. When Bucklew commenced this case, however, there was nothing “settled,” *ibid.*, about whether the interaction of Missouri’s lethal-injection protocol and his rare medical condition would be tolerable under the Eighth Amendment. At that time, *Glossip* had not yet been decided, much less extended to any as-applied challenge like Bucklew’s. In granting prior stay requests in this case, we acted as necessary to ensure sufficient time for sober review of Bucklew’s claims. The majority laments those decisions, but there is nothing unusual—and certainly nothing untoward—about parties pressing, and courts giving full consideration to, potentially meritorious constitutional claims, even when those claims do not ultimately succeed.

II

I am especially troubled by the majority’s statement that “[l]ast-minute stays should be the extreme exception,” which could be read to intimate that late-occurring stay requests from capital prisoners should be reviewed with an especially jaundiced eye. See *ante*, at 150. Were those comments to be mistaken for a new governing standard, they would effect a radical reinvention of established law and the judicial role.

Courts’ equitable discretion in handling stay requests is governed by well-established principles. See *Nken v. Holder*, 556 U. S. 418, 434 (2009). Courts examine the stay applicant’s likelihood of success on the merits, whether the

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applicant will suffer irreparable injury without a stay, whether other parties will suffer substantial injury from a stay, and public interest considerations. *Ibid.*

It is equally well established that “death is a punishment different from all other sanctions in kind rather than degree.” *Woodson v. North Carolina*, 428 U. S. 280, 303–304 (1976). For that reason, the equities in a death penalty case will almost always favor the prisoner so long as he or she can show a reasonable probability of success on the merits. See *Nken*, 556 U. S., at 434 (noting that success on the merits and irreparable injury “are the most critical” factors); cf. *Glossip*, 576 U. S., at 876 (observing, in a preliminary-injunction posture, that “[t]he parties agree that this case turns on whether petitioners are able to establish a likelihood of success on the merits” and analyzing the case accordingly); accord, *id.*, at 968–969 (SOTOMAYOR, J., dissenting). This accords with each court’s “‘duty to search for constitutional error with painstaking care’” in capital cases. *Kyles v. Whitley*, 514 U. S. 419, 422 (1995).

It is of course true that a court may deny relief when a party has “unnecessarily” delayed seeking it, *Nelson v. Campbell*, 541 U. S. 637, 649–650 (2004), and that courts should not grant equitable relief on clearly “‘dilatory,’” “‘speculative,’” or meritless grounds, *ante*, at 151 (quoting *Hill v. McDonough*, 547 U. S. 573, 584–585 (2006)); see also *Gomez v. United States Dist. Court for Northern Dist. of Cal.*, 503 U. S. 653, 654 (1992) (*per curiam*) (vacating a stay where an inmate’s unjustified 10-year delay in bringing a claim was an “obvious attempt at manipulation”). That is hardly the same thing as treating late-arising claims as presumptively suspect.¹

¹ A skewed view of the facts caused the majority to misapply these principles and misuse its “‘equitable powers,’” see *ante*, at 151, 150, n. 5, in vacating the Court of Appeals’ unanimous stay in *Dunn v. Ray*, 586 U. S. 1138 (2019). Even today’s belated explanation from the majority rests on the mistaken premise that Domineque Ray could have figured out sooner that

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The principles of federalism and finality that the majority invokes are already amply served by other constraints on our review of state judgments—most notably the Antiterrorism and Effective Death Penalty Act of 1996, but also statutes of limitations and other standard filters for dilatory claims. We should not impose further constraints on judicial discretion in this area based on little more than our own policy impulses. Finality and federalism need no extra thumb on the scale from this Court, least of all with a human life at stake.

The only sound approach is for courts to continue to afford each request for equitable relief a careful hearing on its own merits. That responsibility is never graver than when the litigation concerns an impending execution. See, *e. g.*, *Kyles*, 514 U.S., at 422; *Woodson*, 428 U.S., at 303–304. Meritorious claims can and do come to light even at the eleventh hour, and the cost of cursory review in such cases would be unacceptably high. See *Glossip*, 576 U.S., at 927–928 (BREYER, J., dissenting) (collecting examples of inmates who came “within hours or days of execution before later being exonerated”). A delay, moreover, may be entirely beyond a prisoner’s control. Execution methods, for example, have been moving targets subject to considerable secrecy in recent years, which means that constitutional concerns may surface only once a State settles on a procedure and communicates its choice to the prisoner.² In other contexts, too,

Alabama planned to deny his imam access to the execution chamber. But see *id.*, at 1140 (KAGAN, J., dissenting) (noting that the governing statute authorized both the inmate’s imam and the prison’s Christian chaplain to attend the execution, and that “the prison refused to give Ray a copy of its own practices and procedures” that would have clarified the two clergymen’s degrees of access); *Ray v. Commissioner, Ala. Dept. of Corrections*, 915 F.3d 689, 701–703 (CA11 2019).

²See *Zagorski v. Parker*, 586 U.S. 938, 940 (2018) (SOTOMAYOR, J., dissenting from denial of application for stay and denial of certiorari) (describing Tennessee’s recent equivocation about the availability of its preferred lethal-injection protocol); *Glossip*, 576 U.S., at 976 (SOTOMAYOR,

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fortuity or the imminence of an execution may shake loose constitutionally significant information when time is short.³

There are higher values than ensuring that executions run on time. If a death sentence or the manner in which it is carried out violates the Constitution, that stain can never come out. Our jurisprudence must remain one of vigilance and care, not one of dismissiveness.

J., dissenting) (noting States' "scramble" to formulate "new and untested" execution methods); *Sepulvado v. Jindal*, 739 F. 3d 716, 717–718 (CA5 2013) (Dennis, J., dissenting from denial of rehearing en banc) (describing Louisiana's refusal to inform a prisoner of the drugs that would be used to execute him); Denno, *Lethal Injection Chaos Post-Baze*, 102 Geo. L. J. 1331, 1376–1380 (2014) (describing increased secrecy around execution procedures).

³See *Connick v. Thompson*, 563 U.S. 51, 55–56, and n. 1 (2011) (intentionally suppressed exculpatory crime lab report discovered a month before a scheduled execution); *Ex parte Braziel*, No. WR–72,186–01 (Tex. Crim. App., Dec. 11, 2018), pp. 1–2 (Alcala, J., dissenting) (disclosure by the State of "new information about possible prosecutorial misconduct" the same day as an execution).

Syllabus

EMULEX CORP. ET AL. *v.* VARJABEDIAN ET AL.ON CERTIORARI TO THE UNITED STATES COURT OF
APPEALS FOR THE NINTH CIRCUIT

No. 18–459. Argued April 15, 2019—Decided April 23, 2019
Certiorari dismissed. Reported below: 888 F. 3d 399.

Gregory G. Garre argued the cause for petitioners. With him on the briefs were *Benjamin W. Snyder*, *Shay Dvoretzky*, and *Jeffrey R. Johnson*.

Morgan L. Ratner argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Francisco*, *Deputy Solicitor General Stewart*, *Robert B. Stebbins*, *Michael A. Conley*, *David D. Lisitza*, and *Lisa K. Helvin*.

Daniel L. Geyser argued the cause for respondents. With him on the brief were *Miles D. Schreiner* and *Benjamin Heikali*.*

PER CURIAM.

The writ of certiorari is dismissed as improvidently granted.

It is so ordered.

*Briefs of *amici curiae* urging reversal were filed for the Chamber of Commerce of the United States of America et al. by *George T. Conway III* and *Daryl Joseffer*; for Former Commissioners of the Securities and Exchange Commission by *Jonathan L. Marcus* and *Michael A. McIntosh*; for the Securities Industry and Financial Markets Association by *William M. Regan*, *Marc J. Gottridge*, *Allison M. Wuertz*, and *Kevin Carroll*; and for the Washington Legal Foundation by *Lyle Roberts*, *George E. Anhang*, *Cory L. Andrews*, and *Richard A. Samp*.

Briefs of *amici curiae* urging affirmance were filed for Institutional Investors by *Kevin K. Russell*, *Charles H. Davis*, *Erica Oleszczuk Evans*, *Cheryl George*, *Jay Eisenhofer*, *Carol V. Gilden*, *Jeremy A. Lieberman*, and *James W. Johnson*; for Legal Scholars by *Edward Labaton*, *Marc I. Gross*, *Darren Check*, and *Darren J. Robbins*; and for the North American Securities Administrators Association, Inc., by *Ruthanne M. Deutsch* and *Hyland Hunt*.

Alan E. Golomb filed a brief for Phillip Goldstein as *amicus curiae*.

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LAMPS PLUS, INC., ET AL. *v.* VARELACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 17–988. Argued October 29, 2018—Decided April 24, 2019

In 2016, a hacker tricked an employee of petitioner Lamps Plus, Inc., into disclosing tax information of about 1,300 company employees. After a fraudulent federal income tax return was filed in the name of respondent Frank Varela, a Lamps Plus employee, Varela filed a putative class action against Lamps Plus in Federal District Court on behalf of employees whose information had been compromised. Relying on the arbitration agreement in Varela’s employment contract, Lamps Plus sought to compel arbitration—on an individual rather than a classwide basis—and to dismiss the suit. The District Court rejected the individual arbitration request, but authorized class arbitration and dismissed Varela’s claims. Lamps Plus appealed, arguing that the District Court erred by compelling class arbitration, but the Ninth Circuit affirmed. This Court had held in *Stolt-Nielsen S. A. v. AnimalFeeds Int’l Corp.*, 559 U.S. 662, that a court may not compel classwide arbitration when an agreement is silent on the availability of such arbitration. The Ninth Circuit ruled that *Stolt-Nielsen* was not controlling because the agreement in this case was ambiguous rather than silent on the issue of class arbitration.

Held:

1. This Court has jurisdiction. An order that both compels arbitration and dismisses the underlying claims qualifies as “a final decision with respect to an arbitration” within the meaning of 9 U.S.C. § 16(a)(3), the jurisdictional provision on which Lamps Plus relies. See *Green Tree Financial Corp.-Ala. v. Randolph*, 531 U.S. 79, 89. Varela attempts to distinguish *Randolph* on the ground that the appeal here was taken by the party who had already secured the relief it requested, *i. e.*, Lamps Plus had already obtained an order dismissing the claim and compelling arbitration. But Lamps Plus did not secure the relief it requested, since it sought individual rather than class arbitration. The shift from individual to class arbitration is a “fundamental” change, *Stolt-Nielsen*, 559 U.S., at 686, that “sacrifices the principal advantage of arbitration” and “greatly increases risks to defendants,” *AT&T Mobility LLC v. Concepcion*, 563 U.S. 333, 348, 350. Avoiding these consequences gives Lamps Plus the “necessary personal stake” to appeal. *Camreta v. Greene*, 563 U.S. 692, 702. Pp. 180–182.

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2. Under the Federal Arbitration Act, an ambiguous agreement cannot provide the necessary contractual basis for concluding that the parties agreed to submit to class arbitration. Pp. 182–189.

(a) “Arbitration is strictly a matter of consent,” *Granite Rock Co. v. Teamsters*, 561 U.S. 287, 299 (internal quotation marks omitted), and the task for courts and arbitrators is “to give effect to the intent of the parties,” *Stolt-Nielsen*, 559 U.S., at 684. In carrying out that responsibility, it is important to recognize the “fundamental” difference between class arbitration and the individualized form of arbitration envisioned by the FAA. Class arbitration “sacrifices the principal advantage of arbitration—its informality—and makes the process slower, more costly, and more likely to generate procedural morass than final judgment.” *Concepcion*, 563 U.S., at 348. Because of such “crucial differences,” *Stolt-Nielsen*, 559 U.S., at 687, this Court has held that courts may not infer consent to participate in class arbitration absent an affirmative “contractual basis for concluding that the party *agreed* to do so,” *id.*, at 684. Silence is not enough. *Id.*, at 687. That reasoning controls here. Like silence, ambiguity does not provide a sufficient basis to conclude that parties to an arbitration agreement agreed to “sacrifice[] the principal advantage of arbitration.” *Concepcion*, 563 U.S., at 348. This conclusion aligns with the Court’s refusal to infer consent when it comes to other fundamental arbitration questions. See, e.g., *First Options of Chicago, Inc. v. Kaplan*, 514 U.S. 938, 945. Pp. 183–186.

(b) The Ninth Circuit’s contrary conclusion was based on the state law *contra proferentem* doctrine, which counsels that contractual ambiguities should be construed against the drafter. That default rule is based on public policy considerations and seeks ends other than the intent of the parties. Such an approach is flatly inconsistent with “the foundational FAA principle that arbitration is a matter of consent.” *Stolt-Nielsen*, 559 U.S., at 684. Varela claims that the rule is nondiscriminatory and gives equal treatment to arbitration agreements and other contracts alike, but an equal treatment principle cannot save from preemption general rules “that target arbitration either by name or by more subtle methods, such as by ‘interfer[ing] with fundamental attributes of arbitration,’” *Epic Systems Corp. v. Lewis*, 584 U.S. 497, 508. This conclusion is consistent with the Court’s precedents holding that the FAA provides the default rule for resolving certain ambiguities in arbitration agreements. See, e.g., *Mitsubishi Motors Corp. v. Soler Chrysler-Plymouth, Inc.*, 473 U.S. 614, 626. Pp. 186–189.

701 Fed. Appx. 670, reversed and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concur-

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ring opinion, *post*, p. 189. GINSBURG, J., filed a dissenting opinion, in which BREYER and SOTOMAYOR, JJ., joined, *post*, p. 191. BREYER, J., *post*, p. 195, and SOTOMAYOR, J., *post*, p. 203, filed dissenting opinions. KAGAN, J., filed a dissenting opinion, in which GINSBURG and BREYER, JJ., joined, and in which SOTOMAYOR, J., joined as to Part II, *post*, p. 205.

Andrew J. Pincus argued the cause for petitioners. With him on the briefs were *Archis A. Parasharami*, *Daniel E. Jones*, *Donald M. Falk*, *Jeffry A. Miller*, *Eric Y. Kizirian*, and *Michael K. Grimaldi*.

Michele M. Vercoski argued the cause for respondent. With her on the brief were *Scott L. Nelson* and *Allison M. Zieve*.*

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

The Federal Arbitration Act requires courts to enforce covered arbitration agreements according to their terms. See 9 U.S.C. §2. In *Stolt-Nielsen S. A. v. AnimalFeeds Int’l Corp.*, 559 U.S. 662 (2010), we held that a court may not compel arbitration on a classwide basis when an agreement is “silent” on the availability of such arbitration. Because class arbitration fundamentally changes the nature of the “traditional individualized arbitration” envisioned by the FAA, *Epic Systems Corp. v. Lewis*, 584 U.S. 497, 509 (2018), “a party may not be compelled under the FAA to submit

*Briefs of *amici curiae* urging reversal were filed for the Center for Workplace Compliance by *John R. Anmand* and *Rae T. Vann*; for the Chamber of Commerce of the United States of America by *Thomas R. McCarthy* and *J. Michael Connolly*; for DRI—The Voice of the Defense Bar by *Mary Massaron* and *Hilary A. Ballentine*; for the New England Legal Foundation by *Benjamin G. Robbins* and *Martin J. Newhouse*; and for the Retail Litigation Center, Inc., by *Adam G. Unikowsky* and *Deborah R. White*.

Briefs of *amici curiae* urging affirmance were filed for the American Association for Justice by *Deepak Gupta*, *Matthew Wessler*, *Greg Beck*, and *Jeffrey R. White*; and for Contract Law Scholars by *Matthew A. Seligman*, *pro se*.

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to class arbitration unless there is a contractual basis for concluding that the party *agreed* to do so,” *Stolt-Nielsen*, 559 U. S., at 684 (emphasis in original). We now consider whether the FAA similarly bars an order requiring class arbitration when an agreement is not silent, but rather “ambiguous” about the availability of such arbitration.

I

Petitioner Lamps Plus is a company that sells light fixtures and related products. In 2016, a hacker impersonating a company official tricked a Lamps Plus employee into disclosing the tax information of approximately 1,300 other employees. Soon after, a fraudulent federal income tax return was filed in the name of Frank Varela, a Lamps Plus employee and respondent here.

Like most Lamps Plus employees, Varela had signed an arbitration agreement when he started work at the company. But after the data breach, he sued Lamps Plus in Federal District Court in California, bringing state and federal claims on behalf of a putative class of employees whose tax information had been compromised. Lamps Plus moved to compel arbitration on an individual rather than classwide basis, and to dismiss the lawsuit. In a single order, the District Court granted the motion to compel arbitration and dismissed Varela’s claims without prejudice. But the court rejected Lamps Plus’s request for individual arbitration, instead authorizing arbitration on a classwide basis. Lamps Plus appealed the order, arguing that the court erred by compelling class arbitration.

The Ninth Circuit affirmed. 701 Fed. Appx. 670 (2017). The court acknowledged that *Stolt-Nielsen* prohibits forcing a party “to submit to class arbitration unless there is a contractual basis for concluding that the party *agreed* to do so” and that Varela’s agreement “include[d] no express mention of class proceedings.” 701 Fed. Appx., at 672. But that did not end the inquiry, the court reasoned, because the fact that